



END THE BLAME GAME

NO-FAULT DIVORCE (1969)

IN CONTEXT

FOCUS

Civil law

BEFORE

1794 Prussia's General State Laws permit couples without children to divorce.

1917 Bolshevik Russia loosens divorce laws on the grounds that marriage is a bourgeois construct.

AFTER

1975 Australia permits no-fault divorce on the grounds only of the "irretrievable breakdown" of a marriage.

2010 New York becomes the last US state to introduce no-fault divorce.

2019 Britain commits to introducing no-fault divorce, with a bill entering Parliament in 2020.

In almost all Western societies, divorce was once universally considered the most desperate of remedies and was socially shaming. Because marriage was the bedrock of Christian belief in the primacy of the family, divorce was more or less unthinkable. It was made more so by its complexity and the need to prove "fault," whether adultery, cruelty, or abandonment. Its impact on the victims—children above all—weighed just as heavily.

By the late 1960s, attitudes had changed. It was in the state of California in 1969 that a new legal belief emerged: that a couple who had suffered "irreconcilable differences" had sufficient grounds for divorce. No "fault" needed to be demonstrated. Since 2010, no-fault divorces have been legal in every US state.

The arguments for and against have been fierce. No-fault divorce has been hailed as a liberation, a rational means of ending any doomed marriage, with painful disputes avoided. It has no less been criticized as a cheapening of what should be a lifelong commitment, with liberalized divorce laws invariably leading to more divorces. It cannot be said whether or not children benefit from their parents' more ready separation.

Either way, Western opinion has since accepted no-fault divorce as the least harmful way to end a marriage. However, while the law can moderate and reason, it cannot legislate for the full complexity of human relationships. ■



It ... mystifies me that the spouses could ... be forced to stay married to someone who refuses to let go.

L. M. Fenton

American divorce lawyer,
Salon magazine, 2010



See also: The Universal Declaration of Human Rights 222–229 ■ The European Convention on Human Rights 230–233 ■ Same-sex marriage 292–295